



First Assurance

PROFESSIONAL INDEMNITY INSURANCE POLICY (MISCELLANEOUS)

IMPORTANT NOTICE

This Policy should be examined carefully on receipt and if any error is found the Company should be immediately notified within 30 days.

First Assurance Company Limited is regulated by the Insurance Regulatory Authority.

NOTICE

This is a claims made policy. Except to such extent as may otherwise be provided herein, the coverage of this policy is limited generally to liability for only those claims that are first made against the insured for acts committed or allegedly committed by the insured and reported to Company while the policy is in force, provided there has not been a break of cover with the Company from the date the negligent act, omission or error was committed to the date the claim is made.

Whereas the Insured has submitted to the Insurer a signed proposal form or forms and, where requested, a declaration form containing particulars and statements which are the basis of this Policy and are incorporated herein and in consideration of the Insured having agreed to pay the total premium stated in the Schedule to the Insurer it is agreed that:

SECTION 1: INSURING CLAUSES

1.1 Breach of Duty

The Insurer will indemnify the Insured against any claim first made against the Insured and notified to the Insurer during the Period of Insurance which in respect of breach of duty of the Insured incurred in the exercise and conduct of the Insured's professional business by reason of any negligent act, error or omission on the part of the Insured.

The Insurer will not indemnify the Insured in respect of any claim, set-off or counter-claim by the Insured for outstanding fees or any other sum.

1.2 Breach of Confidentiality

The Insurer will indemnify the Insured against any blame for which they may become legally liable first made against them and notified to the Insurer during the Period of Insurance arising from the conduct of the Insured's professional business alleging unintentional breach or infringement of confidential information, trade secrets, patents, copyrights, or the system or program of others.

1.3 Libel and Slander

The Insurer will indemnify the Insured for sums which the insured becomes legally liable to pay in respect of blames made upon them and notified to the Insurer during the Period of Insurance in direct consequence of any libel or slander uttered by the Insured in the course of their professional business provided that this Policy shall not extend to any matter contained in a journal or other publication or in any communication or contribution to the press radio television or other media intended for circulation outside the practice.

1.4 Loss of Documents

The Insurer will indemnify the Insured in respect of any reasonable costs and expenses incurred by the Insured with the prior written consent of the Insurer in replacing or restoring documents owned by the Insured in the conduct of the Insured's Professional Business, which are discovered and notified to the Insurer during the Period of Insurance to be damaged, destroyed, lost or mislaid and which after diligent search cannot be found.

The maximum amount payable by the Insurer under this clause shall be that stated in the schedule in respect of each loss or series of losses arising from the same cause or event and in the aggregate during the Period of Insurance. This sum is not additional to and shall not increase the Limit of Indemnity.

SECTION 2: DEFINITIONS

2.1 "Circumstance" shall mean an intimation to the Insured of a possible claim or loss under this Policy or awareness by the Insured of facts which are likely to give rise to a claim or loss under this Policy.

2.2 "Claim" shall mean:

2.2.1 Any demand for damages or compensation made against the Insured; or

2.2.2 Any notice of intention, whether orally or in writing, to commence legal proceedings against the Insured; or

2.2.3 Any communication invoking any pre-action protocols involving the Insured.

2.3 “Defence Costs” shall mean legal costs, disbursements and expenses reasonably necessary incurred by the Insured with the written consent of the Insurer or by the Insurer in:

2.3.1 Defending any proceedings in relation to a claim or loss; or

2.3.2 Conducting any proceedings for indemnity, contribution or recovery relating to a claim or loss; or

2.3.3 Investigating, reducing, avoiding or compromising any actual or potential claim or loss; or

2.3.4 Acting for the Insured in connection with any investigation, enquiry or disciplinary proceedings.

Defence costs do not include any internal or overhead expenses of the Insured or the cost of any Insured’s time.

2.4 “Documents” shall mean all forms of documents of whatsoever nature whether written printed or reproduced by any other method, including computer system records provided the Insured maintains duplicates of such records, and excludes bearer bonds, coupons, bank notes, currency notes and negotiable instruments.

2.5 “Excess” shall mean any excess stated in the Schedule for which the Insurer will not indemnify the Insured in respect of each claim and each claimant.

2.6 “Finance Provider” shall mean a third party who enters into an agreement with the Insured to pay the total premium to it by instalments.

2.7 “Insured” shall mean:

2.7.1 The practice; and

2.7.2 Any present or past principal, partner, member, director or employee of the practice; and

2.7.3 The estate or legal representatives of any of the persons in 2.7.2 above in the event of their death, incapacity, insolvency or bankruptcy.

2.8 “Insurer” shall mean the Insurer as stated in the Schedule.

2.9 “Limit of Indemnity” shall mean the limit of indemnity stated in the Schedule which is the maximum amount payable by the Insurer in respect of each claim save as otherwise expressly limited.

All claims resulting from:

2.9.1 One and the same act, error or omission; or

2.9.2 A series of acts, errors or omissions arising out of the same proximate cause; or

2.9.3 The acts, errors or omissions of one person or persons acting together or in which such person or persons are concerned or implicated, shall for the purpose of the Limit of Indemnity and the excess be treated as one claim save that for the purpose of the excess any claim in respect of more than one application or use of the design, advice or other service provided by the Insured shall be treated as one claim in respect of each such application or use.

2.10 “Period of Insurance” shall mean the period stated in the Schedule unless the Policy is terminated.

2.11 “Pollution” shall mean the discharge, dispersal, release or escape of any solid, liquid, gaseous or thermal irritant or contaminant including but not limited to, smoke, vapours, soot, fumes, acids, alkalis, chemicals and waste, including but not limited to, material to be recycled, reconditioned or reclaimed.

2.12 “Practice” shall mean the practice as stated in the Schedule either being:

2.12.1 A principal, or partnership comprised of the present or past partners or members named in the proposal form or forms submitted to the Insurer, and any person who becomes a principal, partner or member of the firm during

the Period of Insurance; or

- 2.12.1 A corporate body. This definition also includes any practice for which the Insured is legally liable in consequence of the acquisition prior to inception of this Policy, whether partial or otherwise, of any practice and which the Insurer has specifically agreed by endorsement to this Policy to insure.

2.13 “Professional Business” shall mean that business stated in the Schedule and any other business as may be specifically agreed by endorsement to this Policy.

2.14 “Total Premium” shall mean the amount stated in the Schedule payable by the Insured to the Insurer.

SECTION 3: CONDITIONS

3.1 Breach of Condition

Where the Insured’s breach of or non-compliance with any condition of this Policy has resulted in prejudice to the Insurer in the handling or settlement of any circumstance or claim the Insurer shall be entitled to reduce the indemnity under this Policy in respect of such circumstance or claim to such sum as in the Insurer’s reasonable opinion would have been payable by it in the absence of such prejudice.

3.2 Choice of Law and Jurisdiction

The law applicable to this Policy is the law of Kenya and any proceedings shall be subject to the exclusive jurisdiction of the courts of Kenya.

3.3 Claims Control and Co-Operation

Following notification to the Insurer under this Policy the Insurer shall conduct the investigation, defence or settlement of any actual or potential claim save that if the Insured does not consent to the claim being defended the Insurer shall conduct the defence of the claim only if a Queen’s Counsel agreed upon by the Insurer and the Insured (or in default of agreement then nominated by the President of the Bar Council or someone acting on his authority on the application of either party) advises that the claim can be defended with a probability of success.

It is a condition precedent to the Insurer’s liability under this Policy that the Insured shall fully co-operate with the Insurer, comply with all reasonable requests for information and documents and give all such assistance as the Insurer may reasonably require.

3.4 Defence Costs

If a payment beyond the amount of indemnity available under this Policy has to be made by the Insurer to dispose of a claim, the Insurer’s liability for the defence costs shall be such proportion as the amount of indemnity available under this Policy bears to the amount paid to dispose of the claim.

3.5 Dispute Resolution

Any dispute or difference between the Insured and the Insurer arising from this Policy shall be referred to a Queen’s Counsel of the English Bar to be agreed upon between the Insurer and the Insured or to any other party as may be agreed. In the event of a dispute regarding the appointment, the President (or any person acting with the authority of the President) for the time being of the professional body of which the Insured is a member shall nominate an appropriate independent arbitrator whose decision shall be binding on both parties. The dispute shall be arbitrated in accordance with the statutory provisions as to arbitration for the time being in force.

The findings of the appointed arbitrator shall be binding upon the Insurer and the Insured and the costs of such an exercise shall be allocated by the arbitrator on the basis he/she considers fair and equitable.

3.6 Excess

The excess shall be borne by the Insured at the risk of the Insured and the Insurer shall be liable to indemnify the Insured under Insuring Clause 1 only in excess of such amount. Any excess shall not apply to defence costs or to

3.7 False, Dishonest or Fraudulent Claims

If the Insured shall make any claim under this Policy knowing the same to be false, dishonest or fraudulent, as regards amount or otherwise, this Policy shall become void and all claims hereunder shall be forfeited.

3.8 Joint Indemnity

The indemnity afforded by the terms of this Policy is provided jointly to all parties constituting the Insured and for all purposes this Policy shall be considered as a joint policy with one Limit of Indemnity.

3.9 Limit of Indemnity

The liability of the Insurer shall not exceed the Limit of Indemnity except that subject to Condition 3.4 Defence Costs shall be paid in addition.

3.10 Misrepresentation, Mis-statement or Non-disclosure

Should the Insurer be entitled to avoid liability under this Policy by reason of misrepresentation, mis-statement or non-disclosure, the Insurer may at its sole discretion, as an alternative to avoiding this Policy, give written notice to the Insured that it regards the cover hereunder as continuing in full force and effect. This is subject to the proviso that there shall be excluded from such indemnity any circumstance or claim which is related to such misrepresentation, mis-statement or non-disclosure, whereupon this Policy shall continue in full force and effect but shall be deemed to exclude, as if the same had been specifically endorsed, the particular or possible circumstance or claim referred to in such written notice.

3.11 No Admission of Liability

It is a condition precedent to the Insurer's liability under this Policy that in the event of a circumstance or claim the Insured shall not admit liability and no admission, arrangement, offer, promise or payment shall be made by the Insured without the Insurer's prior written consent.

3.12 Notification

The Insured shall give to the Insurer as soon as practicable notice in writing:

3.12.1 Of any claim; or

3.12.2 Of any circumstance; or

3.12.3 Of any loss or event that may or will be the subject of indemnity under this Policy.

Such notice having been given and having been accepted by the Insurer as having been validly given under 3.12.2 or 3.12.3 above, any subsequent claim made arising out of such circumstance or such loss or event shall be deemed to have been made during the Period of Insurance.

3.13 Other Insurance

If at the time any claim by the Insured under this Policy arises the Insured is or would but for the existence of this Policy be entitled to indemnity under any other policy, the Insurer shall not be liable except in respect of any excess beyond the amount which would have been payable under such other policy had this Policy not been effected.

3.14 Payment of Total Premium

Unless otherwise agreed in writing between the Insurer and the Insured, it is a condition precedent to the Insurer's liability under this Policy that the Insured shall pay the Total Premium to the Insurer within 30 days of inception of the Policy and that time is of the essence. If the Total Premium is not paid to the Insurer within 30 days of inception, the Policy is terminated immediately with effect from inception and the Insurer will have no liability under this Policy.

Where the Insurer and the Insured have agreed in writing that a finance provider will pay the total premium on behalf of the Insured to the Insurer it is a condition precedent to the Insurer's liability under this Policy that the Insured shall pay to the finance provider each of the instalments due to the finance provider on the dates that they are due and that time is of the essence and that the Insured shall not breach any of the terms and conditions of the agreement between the finance provider and the Insured. Unless all of the instalments are paid by the due date, the Policy is terminated:

- 3.14.1 With effect from inception if no instalment has been paid and the Insurer will have no liability under the Policy; or
- 3.14.2 With effect from the date that the instalment which has not been paid was due if one or more instalments have been paid and the Insurer will have no liability after that date.

It is also a condition precedent to the Insurer's liability under the Policy that the finance provider does not, pursuant to the agreement between the finance provider and the Insured, instruct the Insurer to cancel the Policy. If the finance provider instructs the Insurer to cancel the Policy it is terminated in accordance with 3.14.1 or 3.14.2 above as applicable or, in any other circumstance, with effect from the date of the instruction from the finance provider to the Insurer.

3.15 Settlement

If the Insured does not want an actual or potential claim to be settled the Insurer may, at its sole discretion, as an alternative to settling the claim, pay to the Insured the amount for which the claim could have been settled, less the excess not exceeding the Limit of Indemnity, and the Insurer will have no further liability under the Policy in respect of the claim.

3.16 Subrogation

If any payment is made under the terms of this Policy the Insured grants rights to the Insurer all rights of recovery against any parties from whom a recovery may be made. The Insurer has rights of recovery against any present or past principal, partner, director or employee of the practice where liability has resulted in whole or in part from a dishonest or fraudulent act or omission on the part of the present or past principal, partner, director or employee.

3.17 Sub-Contracted Work

The Insured has and shall continue to use its best endeavours to ensure that all sub consultants appointed by the Insured or for which the Insured are responsible maintain Professional Indemnity Insurance.

3.18 Tax

The Insured will pay any tax due on the premium in accordance with current legislation.

3.19 Declaration Clause

The first and all renewal premiums that may be accepted are to be regulated by the annual gross fees received and the total number of staff including partners and/or directors during each period of insurance. The insured shall supply the Company with a correct figure of such gross fees and number of staff including partners and/or directors during any period of insurance. If the declaration shall differ from the figures of which the premium has been paid, the difference in premium shall be met by a further proportionate payment to the Company or by a refund by the Company.

Should the Insured fail to supply such a declaration within one month of the expiry of the period of insurance, the Company shall assume that there is no change in the declared values and the previous period figures provided to be adopted for the current renewal period. In the event of a claim and the insured declares higher values, or it is discovered that the values were underdeclared, then the average clause shall apply.

3.20 Sanctions Clause

The Insurer shall not be deemed to provide cover and the [Insurer] shall not be liable to pay any claim or provide any benefit under this policy to the extent that the provision of such coverage, payment of such claim or provision of such benefit would expose the [Insurer], its parent, subsidiary or affiliate entities and organizations, including any director, officer, employee, or agent to any sanction, prohibition or restriction implemented pursuant to resolutions of the United Nations or the trade and economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.”

3.21 Sunset Clause

Insured shall notify the company of all claims promptly and not later than six (6) months whichever the earlier from the date of loss. Any claim brought and notified to the company upon expiry of the set period herein above shall not be admissible and the company shall not be under any compulsion and/or obligation under this policy to admit liability.

This clause shall be read alongside the notification clause and does not extinguish the notification clause/condition

3.22 Screening And Verification

We disclose to you that being part of a global financial institution, We comply with national and international laws, regulations, policies, rules and requirements to prevent criminal activities, money laundering and terrorist financing, sanctions and prohibited business activity laws and rules violations.

Therefore, we may initially screen, verify and process all your new and related information and thereafter monitor all information, instructions and transactions by and on behalf of yourself(s) in relation to all transactions and to the business relationship on a continuous basis.

This may result in the prohibition, limitation, delay in the execution of instructions or transactions and even in the declining or terminating any transaction or business relationship with yourself(s) and to the extent permitted, we shall advise of any action we intend to take in terms hereof.

Please note, you acknowledge and confirm that neither us, nor our respective affiliates, employees, officers or directors, shall be liable for any direct or consequential loss, damage, costs or expenses whatsoever that may be suffered or incurred by you as a result of, arising from or relating to any such prohibition, limitation, delay, decline or termination due to the implementation of this clause.

3.23 Data Protection Clause

Any information about The Policyholder and or Insured Person(s) which The Policyholder and or Insured Person(s) provides to The Insurer(s) will be processed by The Insurer(s) in compliance with the provisions of the Protection of Personal Information Act, 2013 as amended from time to time, for the purpose of providing insurance and handling Claims, if any, which may necessitate providing such information to third parties

First Assurance Company Limited (FACL) will use the information supplied during the formation and performance of this policy for policy administration, customer services, the payment of claims and the production of management information for business analysis. We will keep this information for a reasonable period.

Where sensitive personal data has been disclosed, including any medical information, FACL will also use this information for these purposes

FACL may record telephone calls for quality control, fraud prevention and staff training purposes.

When personal or sensitive data is supplied to FACL about third parties other than the Policyholder and or Insured Person(s), both during the formation and performance of this policy, FACL assumes that those third parties consent to the supply of this information to FACL, to FACL processing this data, including sensitive personal data, and to the transfer of their information abroad. FACL will also assume that the supplier of the information is authorised to receive, on their behalf, any data protection notices

FACL may share personal and sensitive personal information with the following organisations for the purposes described above:

- a) our connected companies, service providers, agents and subcontractors including loss adjusters and claims investigators;

- b) our reinsurers who use this information to assess the terms of specific policies and to administer our insurance policies generally;
- c) other insurance companies about other insurance policies the Policyholder and or Insured Person(s) may have;
- d) the police, other insurance companies, fraud reference agencies and other representative bodies in relation to the prevention and detection of fraudulent claims or as part of our money laundering checks

FACL works with the police, other insurance companies, fraud reference and detection agencies and other representative bodies to prevent and detect fraudulent or exaggerated claims. As part of this FACL will share information about your claims with providers of software designed to assist in the detection of fraudulent claims. FACL may also use commercially available databases to prevent money laundering. Other companies may contact these bodies for information to help them make decisions about insurance or similar services they provide to you. Individuals whose information has been supplied to FACL are entitled to a copy of that information on payment of a fee and to have any inaccuracies corrected. Such information is available by contacting the Compliance Officer at First Assurance Company Limited

We do not use personal information for marketing purposes, nor do we share it with any other company for marketing purposes, unless consent to do so has been received in writing from you.

SECTION 4: EXCLUSIONS

The Insurer shall not indemnify the Insured in respect of any liability, loss, damage, cost or expense, directly or indirectly caused by, in connection with or arising out of any of the following:

4.1 Asbestos

Any:

- 4.1.1 Mining, processing, manufacturing, use testing, ownership, sale or removal of asbestos fibres or material containing asbestos; or
- 4.1.2 Exposure to asbestos, asbestos fibres or materials containing asbestos; or
- 4.1.3 Provision of instructions, recommendations, notices, warnings, supervision or advice given, or which should have been given, in connection with asbestos, asbestos fibres or structures or materials containing asbestos.

4.2 Associated Companies

Any claim by any associated parent or subsidiary company or by any person or entity having an executive or significant financial interest in the operation of the Insured.

4.3 Computer System Records

Any loss, distortion or erasure of computer system records:

- 4.3.1 Whilst mounted in or on any machine for use or processing unless caused by fire, lightning, aircraft, water or any neglect, error in performing or omission to perform a professional duty by the Insured; or
- 4.3.2 Resulting from wear, tear, vermin or gradual deterioration; or
- 4.3.3 Caused by climatic or atmospheric conditions or extremes of temperature unless not recoverable under a standard fire policy; or
- 4.3.4 Caused by the presence of magnetic flux or by the loss of magnetism unless caused by lightning.

4.4 Consequential Losses

Any liability for loss of turnover, sales, revenue or profits or for loss of software or data or for indirect, consequential or special loss where the Insured has failed to limit such liability in a contract and it was reasonable for the Insured to have done so.

4.5 Contractor

Any contract where the Insured acts as a contractor carrying out building or construction works whether in conjunction with

the Insured's Professional Business or not.

4.6 Controlling Interest

Any work undertaken for any company or firm in which the Insured or any partner or director or any combination of partners or directors of the Insured exercises or has exercised a controlling interest unless such claim or costs or expenses emanates from an independent third party.

Any entity exercising a controlling interest over the Insured by virtue of it having a financial or executive interest in the operation of the Insured, unless such claim is made against the Insured for an indemnity or contribution in respect of a claim made by an independent third party

4.7 Cyber Liability

Any transaction or communication via the internet, extra-net, via the Insured's own website, web address or via the transmission

of electronic mail or documents by electronic means, arising directly or indirectly out of:

4.7.1 Corruption, erasure, theft, alteration of; or

4.7.2 Access or lack of access to; or

4.7.3 Interference with electronically-held data of the Insured wholly or partly caused by any computer virus or by any person who is not a principal, partner, director or employee currently employed by the Insured.

4.8 Dishonesty or Fraud

Any dishonest or fraudulent act or omission.

4.9 Employer's Liability

Any death, bodily injury, sickness or disease sustained by any person arising out of and in the course of his/her employment by the insured under a contract of service, apprenticeship or work experience.

4.10 Employment Disputes

Any dispute between the Insured and any present or past employee or any person who has been offered employment with the Insured.

4.11 Fines and Damages

Any fines, aggravated, punitive or exemplary damages.

4.12 Insolvency

The insolvency of the Insured or of any insurer, bank, building society or other financial institution.

4.13 Jurisdiction

Any action for damages brought against the Insured in a Court of Law outside Kenya.

4.14 Legal Advice

Any legal advice given by the Insured on specific issues.

It a continuing warranty that if the Insured gives general legal advice to a client the Insured also recommends in writing to the client to take independent legal advice from a qualified solicitor on any specific issue.

4.15 Lending Surveys & Valuations

Any survey or valuation provided by the insured to lenders or borrowers or provided to others for lending or borrowing purposes.

4.16 Nuclear Risks

Any:

- 4.16.1 Ionising radiations or contamination by radioactivity from any nuclear fuel or nuclear waste, the combustion of nuclear fuel; or
- 4.16.2 Radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof.

4.17 Other Business or Occupation

Any business or occupation, other than the Insured's Professional Business, even though the same may be carried on by the Insured in conjunction with that professional business.

4.18 Ownership, Use, Occupation or Leasing of Property

Any ownership, use, occupation or leasing of mobile or immobile property by, to or on behalf of the Insured.

4.19 Pensions, Employee Benefit Schemes or Trust

The operation or administration of any pension or employee benefit scheme or trust fund, or the sale or purchase of or dealing in stocks, shares or securities of the mis-use of any information relating to them or breach of any legislation or regulation related to those activities.

4.20 Pollution or Contamination

Any pollution, or contamination directly or indirectly caused by pollution, including the cost of removing or nullifying or cleaning up the pollution, whether such pollution or contamination was directly or indirectly caused by the Insured.

4.21 Previous Circumstance or Claim

Any circumstance or claim known or which ought to have been known by the Insured prior to the inception of this Policy.

4.22 Product Liability

Any manufacture, construction, alteration, repair, servicing, treating of any goods sold, supplied or distributed by or on behalf of the Insured.

4.23 Public Liability

Any death, bodily injury, sickness or disease sustained by any person or damage, accidental destruction, nuisance, trespass or interference to any property unless arising from any neglect, error in performing or omission to perform a professional duty by the Insured.

4.24 Publishing

Any:

- 4.24.1 Publication of any offensive material, including pornography; or
- 4.24.2 The imitation by a reader of anything shown or described in the publication; or
- 4.24.3 The publication, operation, or results of any game, promotion or lottery; or
- 4.24.4 Defamation where the offending material was not reasonably believed by the insured to be defensible prior to its

publication; or

- 4.24.5 Failure to follow legal advice relating to published material where that legal advice was received prior to its publication; or
- 4.24.6 Allegation by any persons that reading and or acting upon material published by the insured had adversely affected their lifestyle, health or relationships.

4.25 Retroactive Date

Where a Retroactive Date is stated in the Schedule, any conduct of the Insured's Professional Business prior to the Retroactive Date.

4.26 Road Traffic Acts

Any use of any motor vehicles by the Insured in circumstances in which provisions of the Road Traffic Act apply.

4.27 Termination of Practice

Any circumstance or claim in respect of the exercise and conduct of the Insured's Professional Business on or after the date of:

- 4.27.1 A winding up order against the Practice where the Practice is a limited company; or
- 4.27.2 A bankruptcy order against the principal of the Practice or of all the partners of the Practice; or
- 4.27.3 The death of the principal of the Practice or of all the partners of the Practice; or
- 4.27.4 The practice ceasing to trade for any other reason.

4.28 Territorial

Any work in connection with contracts outside Kenya.

4.29 Trading Losses

Any trading loss or trading liability incurred by any business managed by or carried on by or on behalf of the Insured.

4.30 Travel Agents

Any:

- 4.30.1 Design and provision by the Insured of any nationally advertised travel package or package holiday tour supplied through agents or direct to the public.
- 4.30.2 Insolvency of the Insured or any travel agent or tour operator or any supplier or services.

4.31 USA or Canada Judgements

Any enforcement of any judgement originally obtained in any court of the United States of America or Canada or any territories which come under the jurisdiction of the United States of America or Canada.

4.32 Vicarious Liability

The Insured's vicarious liability in connection with persons introduced, recommended, recruited or supplied by the Insured.

4.33 Virus

Any:

- 4.33.1 Transmission by the Insured or on behalf of the Insured of a computer virus, worm, logic bomb or trojan horse.
- 4.33.1 Any virus, worm, logic bomb or trojan horse written or created by the Insured or on behalf of the Insured.
- 4.33.1 Any virus, worm, logic bomb or trojan horse which indiscriminately replicates itself and is automatically

disseminated on a global or national scale, or to an identifiable class or sector of users.

4.34 War or Terrorism Risks

Any:

- 4.34.1 War, invasion, acts of foreign enemies, hostilities or warlike operations, whether war be declared or not, civil war, rebellion, revolution, insurrection, civil commotion, assuming the proportions of or amounting to an uprising, military or usurped power; or
- 4.34.2 Act or terrorism. For the purpose of this exclusion an act of terrorism means an act, including but not limited to the use of force or violence or the threat thereof, of any person or group of persons, whether acting alone or on behalf of or in connection with any organisation or government, committed for political, religious, ideological or similar purposes, including the intention to influence any government or to put the public, or any section of the public, in fear.

This exclusion excludes any liability, loss, damage, cost or expense of any action taken in controlling, preventing, suppressing or in any way relating to 4.34.1 and/or 4.34.2 above.

If the Insurer alleges, by reason of any exclusion, that any liability, loss, damage, cost or expense is not covered by this Policy the burden of proving the contrary shall be upon the Insured.

NOTIFICATION OF CLAIM AND CIRCUMSTANCES

Notification of Claims and Circumstances as referred to in Section 3 shall be given to:

Claim Manager,

First Assurance Company Limited. First Assurance House, Clyde Gardens, Gitanga Road, Lavington

PO Box 30064 - 00100, Nairobi, Kenya

POLICYHOLDER COMPLAINTS

First Assurance is dedicated to providing a high quality service and wants to ensure that it maintains this at all times. If the practice feels that First Assurance has not offered a first class service or if the practice has any questions or concerns about the policy or the handling of a claim the practice should, in the first instance, contact its broker through whom this insurance was placed.

If the practice is unable to resolve the situation and wishes to make a complaint, the practice can do so at any time by referring the matter to the Insurance Regulatory Authority.



HEAD OFFICE

First Assurance House, Clyde Gardens, Gitanga Road, Lavington

P.O. Box 30064 - 00100 Nairobi, Kenya

Tel: 254-020-2900000, (020) 2692250/60/70/80, 3581135/88 CellPhone:

0722444117, 0733605480

Fax: 254-020-(020) 2692290, 2900200

Email: hoinfo@firstassurance.co.ke

TOWN OFFICE

Queensway House, Kaunda Street Tel:
2219852/3/4/5, Cell: 0735 605480

Fax: (020) 2219861

Email: cbdinfo@firstassurance.co.ke

MOMBASA BRANCH

First Assurance House, Nyali Road, Off Malindi-Mombasa Road

P.O. Box 43559 Mombasa, Kenya

Tel: 041-4476494/4476700, (020) 2684011/12, Cell: 0734605491 Fax: 041-4470602,
(020) 2684021

Email: msainfo@firstassurance.co.ke

KISUMU BRANCH:

First Assurance, United Mall, Ground floor

Kisumu-Kakamega Road

P.O. Box 186-40100 Kisumu, Kenya

Tel: (057) 2024102, (020) 2030576, 2082507, Fax: (057) 2024063

Email: ksminfo@firstassurance.co.ke

NAKURU BRANCH:

Westside Mall, 2nd floor above Nakumatt

P.O. Box 18002-20100 Nakuru, Kenya Tel: +254 20

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